

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                         |                               |                                                       |                                    |                                 |
|--------------------------------------------------|---------------------------------------------------------|-------------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Frank Montgoris                 | Team:<br>Squad #7                                       | CCRB Case #:<br>201707784     | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                         |                               | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 09/19/2017 1:00 PM  | Location of Incident:<br>The 32nd Precinct stationhouse | Precinct:<br>32               | 18 Mo. SOL<br>3/19/2019                               | EO SOL<br>3/19/2019                |                                 |
| Date/Time CV Reported<br>Thu, 09/21/2017 1:39 PM | CV Reported At:<br>CCRB                                 | How CV Reported:<br>In-person | Date/Time Received at CCRB<br>Thu, 09/21/2017 1:39 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. POM Chad Hofsiss | 06801  | 953971 | 032 PCT |
| 2. DTS Andrew Nash  | 05497  | 950935 | 032 PCT |

| Officer(s)         | Allegation                                                                                 | Investigator Recommendation |
|--------------------|--------------------------------------------------------------------------------------------|-----------------------------|
| A.DTS Andrew Nash  | Abuse: Detective Andrew Nash interfered with § 87(2)(b) s use of a recording device.       |                             |
| B.POM Chad Hofsiss | Abuse: Police Officer Chad Hofsiss interfered with § 87(2)(b) s use of a recording device. |                             |

### Case Summary

§ 87(2)(b) filed this complaint with the CCRB in-person on September 21, 2017.

On September 19, 2017, at approximately 1 p.m., § 87(2)(b) went to the 32<sup>nd</sup> Precinct stationhouse to retrieve his registration that was allegedly taken from him in a prior police interaction. While in the stationhouse, he began recording his conversation with PO Chad Hofsiss and Det. Andrew Nash, both of the 32<sup>nd</sup> Precinct. Both Det. Nash and PO Hofsiss attempted to interfere with § 87(2)(b)'s ability to record by telling him that he could not record inside of the stationhouse (**Allegations A and B**). No arrests or summonses resulted from this incident. § 87(2)(b) recorded this incident on his cell phone. The footage was edited via Snag-It, and the relevant portion of the video is embedded below (For the original video see Board Review 06, and for the video summary, see Board Review 10).

§ 87(2)(b) also alleged that Precinct Receptionist, PAA Migdalia Velez, did not process his civilian complaint. § 87(2)(g)

This case was reassigned to Inv. Frank Montgoris from IM Eric Rigie on October 13, 2017. § 87(2)(g)



201707784\_20171101\_1156\_DM.mp4

### Mediation, Civil, and Criminal Histories

- This case was eligible for mediation, but § 87(2)(b) declined to mediate.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of October 25, 2017, § 87(2)(b) has not filed a Notice of Claim against the City of New York (Board Review 02).

### Civilian and Subject Officer CCRB Histories

- § 87(2)(b) has four prior complaints with the CCRB. § 87(2)(b)
- PO Hofsiss has been a member of the NYPD for four years. PO Hofsiss is currently the subject to one other allegation stemming from Case #201706034, which is currently awaiting panel review.
- Det. Nash has been a member of the NYPD for six years. § 87(4-b) § 87(2)(g)

### **Findings and Recommendations**

**Allegation A – Abuse of Authority: Detective Andrew Nash interfered with § 87(2)(b)**

**§ 87(2)(b) s use of a recording device.**

**Allegation B – Abuse of Authority: Police Officer Chad Hofsiss interfered with § 87(2)(b)**

**§ 87(2)(b) s use of a recording device.**

§ 87(2)(g)  
It is undisputed that § 87(2)(b) went to the stationhouse to inquire about his vehicle registration that was allegedly taken from him in a prior incident. It is also undisputed that § 87(2)(b) was recording his interaction with PO Hofsiss and Det. Nash, and that both officers told him that he could not record while inside the stationhouse.

PO Hofsiss testified that he asked § 87(2)(b) to stop recording because he believed civilians could not film inside the stationhouse. However, PO Hofsiss did not know where he obtained that belief. PO Hofsiss noted that there are no signs in the stationhouse prohibiting civilians from recording (Board Review 04).

Det. Nash stated that he asked Mr § 87(2)(b) to stop recording because there is a sign posted in the vestibule area informing civilians that they cannot record in the precinct. Det. Nash acknowledged that § 87(2)(b) was not interfering with any police activity with his recording (Board Review 05).

§ 87(2)(b) s cell phone video, which is four minutes and 29 seconds long and captures the entire interaction between § 87(2)(b) and officers, shows PO Hofsiss ask § 87(2)(b) for his identification so he could check if his registration was vouchered. Det. Nash and PO Hofsiss then both inform § 87(2)(b) that he could not record in the stationhouse, with PO Hofsiss saying that it wasn't "safe" to do so. After contesting his right to record, Det. Nash then tells § 87(2)(b) "Ok good. You got the right to get out," asking him to leave a total of three times. § 87(2)(b) then provides his identification to PO Hofsiss, who returns to the vestibule later to inform him that his registration was not vouchered. No other civilians or officers are seen in the vestibule area during this interaction (Board Review 06).

CCRB Field Team investigators visited the 32<sup>nd</sup> Precinct stationhouse, and, upon examining the vestibule area, determined there were no signs posted in the vestibule prohibiting civilians from recording in the stationhouse (Board Review 07).

Members of the public are legally allowed to record police interactions as long as they are not interfering with police operations. NYPD Finest Message #9881632 (2014). Intentional interference, such as blocking the camera or ordering the individual to cease recording, violates the first amendment. Id. Individuals have a right to lawfully record police activity in private property such as a building and lobby, provided the individual has a legal right to be present. Legal Bureau Bulletin, Office of the Deputy Commissioner (2016) (Board Reviews 08 and 09).

§ 87(2)(g)  
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§ 87(2)(g)

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§ 87(2)(g)

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Squad: 7

Investigator: \_\_\_\_\_ Frank Montgoris \_\_\_\_\_  
Signature Print Date

Squad Leader: \_\_\_\_\_ Diana Townsend \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_ \_\_\_\_\_  
Title/Signature Print Date